# 26TRCV00018 26TRCV00018

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 26TRCV00018 Hearing Date: September 8, 2026 Dept: M

LOS ANGELES

SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday,

September 8, 2026 Department M Calendar

No.

PROCEEDINGS

Torrance

Retail Partners, LLC v. AOA Restaurant, Inc., et al.

26TRCV00018

1. Torrance Retail Partners, LLC’s Motion for Attorneys’

Fees

TENTATIVE RULING

Torrance Retail Partners, LLC’s Motion for Attorneys’

Fees is granted.

Background

Plaintiff filed its Complaint on January 7, 2026. Plaintiff alleges a single cause of action for unlawful detainer pursuant to a commercial lease agreement. Plaintiff alleges that Defendant breached the lease by failing to pay the required amounts due under the agreement.

Motion for Attorneys’ Fees

Civ. Code, § 1717(a) states,
in relevant part: “In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. . . . Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit.”

The Court determines the
prevailing party on contract claims “upon final resolution of the contract claims and only by a comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions.” Hsu v. Abbara (1995) 9 Cal.4th 863, 876 (internal quotations omitted). When a party obtains an unqualified victory by prevailing on or defeating a contract claim, that party is entitled to attorneys’ fees. Scott Co. of Calif. v. Blount, Inc. (1999) 20 Cal.4th 1103, 1109. Other non-contract claims that are joined in the action are disregarded for purposes of analyzing contract based attorneys’ fees motions. Thus, even if a party may have been successful on a non-contract claim, the party who prevailed on the contract is entitled to attorneys’ fees pursuant to Section 1717. Santisas v. Goodin (1998) 17 Cal.4th 599, 615; Korech v. Hornwood (1997) 58 Cal.App.4th 1412, 1419-22.

Plaintiff moves for
attorneys’ fees as costs pursuant to Paragraph 31 of the lease agreement entered into by the parties. Paragraph 31 states, in relevant part: “If any Party or Broker brings an action or proceeding involving the Premises whether founded in tort, contract or equity, or to declare rights hereunder, the Prevailing Party (as hereafter defined) in any such proceeding, action, or appeal thereon, shall be entitled to reasonable attorneys' fees.” (Decl., Brenda Joy, Ex. 1). Here, Plaintiff was
the prevailing party as to its Unlawful Detainer Complaint because it prevailed in obtaining possession of the subject premises.

“The trial court has “broad
authority” to determine the amount of a reasonable attorneys’ fees. PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095. “[T]he fee setting inquiry in California

ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” Id. [“California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award.”]. “The experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.” Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (internal quotation omitted.)

Thus, Plaintiff is entitled to attorneys’ fees under the lodestar method based on the reasonable amount of time the attorney spent multiplied by a reasonable rate. Plaintiff requests the following: $10,462.50 in attorney’s fees through trial and $2,192.83 in costs. Plaintiff has provided, in the declaration of Anthony Burton, a full and detained accounting of the time and expenses incurred in this action. (Decl., Anthony Burton, ¶¶ 12-15). Counsel states that the hourly rate of the attorneys is $350 per hour. (Id. at ¶ 14). The Court finds that the hourly rate and time expended were reasonable considering the nature of this case, that the case was contested by the opposing side, and that the matter eventually was adjudicated with a motion for summary judgment. Defendant failed to file any written opposition to the motion, and thus failed to challenge, with any competent evidence, the reasonableness of the amount of attorneys’ fees requested by moving party.

Therefore, Plaintiff’s motion for attorneys’ fees and costs is granted. Plaintiff’s attorneys’ fees are fixed at $10,426.50. Costs are recoverable via the memorandum of costs which sets forth costs in the amount of $2,192.83.

Plaintiff is ordered to give notice of this ruling.